

4	30-2019-01094012 Iwanaga v. Global Financial Data Incorporated	Interested Party's (Jane Doe) Request for Evidentiary Hearing re: Motion to Disqualify scheduled for 9-26-23 is CONTINUED to 10-24-23 at 9:00 a.m. in Department C32 a date and time to be determined at the hearing on 9-26-23. On 8-1-23, Interested Party's Motion to Disqualify Attorney (Motion) previously came on for hearing. The court continued the Motion to Disqualify to 9-26-23, and ordered Interested Party to file a brief in support of her request for an evidentiary hearing by 8-14-23. (8-1-23 Minute Order.) The court ordered Plaintiff (Kevin Iwanaga) to file an opposition brief by 8-29-23. (8-1-23 Minute Order.) Plaintiff filed a redacted version of Plaintiff's Supplemental Brief on 8-29-23 under ROA No. 805. The redacted version contains significant redactions such that the court is unable to determine the arguments that Plaintiff is advancing. The court's file does not reflect that that Plaintiff has filed or lodged an unredacted version of Plaintiff's Supplemental Brief. Based on the above, the court CONTINUES Interested Party's Request for Evidentiary Hearing re: Motion to Disqualify to a date and time to be determined at the hearing on 9-26-23 to allow Plaintiff to file an unredacted version of their Supplemental Brief. Court orders clerk to give notice.
5	30-2021-01231084 Joher v. Joher	<u>Motion No. 1:</u> Defendants' (Chade M. Joher, Hussam H. Joher, and Concept Developer Inc.) Demurer to Hassan S. Joher and Mike Johar's Second Amended Complaint (Demurrer), filed on 5-15-23 under ROA No. 178, is OVERRULED in part and SUSTAINED in part. "A demurrer tests the pleading alone, and not the evidence or the facts alleged. . . . To the extent there are factual issues in dispute, however, this court must assume the truth not only of all facts properly pled, but also of those facts that may be implied or inferred from those expressly alleged in the complaint. [Citations.]" (<i>City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.</i> (1998) 68 Cal.App.4th 445, 459.) Code of Civil Procedure section 452, states, "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." <i>Perez v. Golden Empire Transportation Transit District</i> (2012) 209 Cal.App.4th 1228, 1238, provides, "This rule of liberal construction